SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUOE052336: KIRA JOLIE GOMEZ vs SWEET SCOOP, INC., et al.
07/27/2026 in Department 44
Motion to Compel Arbitration, Strike Class Allegations and Stay All Remaining Proceedings

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at https://www2.ventura.courts.ca.gov/Courtroom/C44.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuOqs-9TQXgEQ

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties use the subject line "SUBMISSION ON TENTATIVE", [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendants' Motion to Compel Arbitration, Strike Class Allegations and Stay All Remaining Proceedings ("Motion")

Tentative Ruling:
Defendants'[1] Motion to Compel Arbitration, Strike Class Allegations, and Stay All Remaining Proceedings is DENIED; Plaintiff was a minor at the time the agreement was executed and she has effectively disaffirmed the agreement under *Coughenour v. Del Taco, LLC* (2020) 57 Cal.App.5th 740 and Family Code section 6710.

[1] For purposes of this motion, the term "Defendants" refers collectively to all of the named defendants in this action: s Sweet Scoop, Inc., Camarillo Food, Inc., Candlestick Food, Inc., Canoga Food, Inc., Downey Food, Inc., Oakridge Food, Inc., Parkway Food, Inc., Pavilion Food, Inc., Rialto Food, Inc., Riverpoint Food, Inc., Silver Food, Inc., Sweet Shack, Inc., Valley Fair Sweet, Inc., and Valley Food, Inc.

I. Background

A. Factual Background

On June 6, 2023, plaintiff Kira Jolie Gomez ("Plaintiff"), was hired to work her first job as a cashier by Sweet Scoop, Inc. doing business as Wetzel's Pretzels at the Pacific View Mall in Ventura, California. When she was hired, the store manager, Nohemi Meneses, provided Plaintiff with a large stack of onboarding paperwork that included the arbitration agreement Defendants now seek to enforce. Plaintiff was requested by Ms. Meneses to complete and turn in the paperwork the day she was hired. Plaintiff denies that Ms. Meneses or any other representative of Sweet Scoop Inc. explained the paperwork to her, told her that signing the paperwork was optional, or that she was allowed to change any terms of the agreement. Plaintiff asserts that she felt rushed and pressured to sign the agreement. (Gomez Decl., ¶¶ 1-12.) Ms. Meneses disputes Plaintiff's account, stating that she explained the documents, told Plaintiff that the arbitration agreement was not a condition of employment, and conducts new employee hires with a checklist to ensure she covers all company policies and the employee responsibilities during orientation. (Meneses Decl., ¶¶ 1-13.)

Plaintiff's date of birth is November 25, 2005. On June 6, 2023, the date Plaintiff signed the papers, she was 17 years old. At the time she signed the agreement she did not have a parent or guardian with her, nor did she understand that she could take the papers home to review them before signing. Plaintiff also asserts that she is autistic and has more difficulty processing dense or complicated written materials. She further avers that now that she understands that the documents included an arbitration agreement and the import of it, she would not have agreed to it, and that she disaffirms and rejects the agreement. (Gomez Decl., ¶¶ 2, 3, 13.)

The arbitration agreement is attached as Exhibit A to the declaration of attorney Laurie M. Cortez in support of Defendants' Motion, and provides as follows:

"**ARBITRATION AGREEMENT - IMPORTANT - THIS AFFECTS YOUR RIGHTS** This Arbitration Agreement supersedes and voids any other prior-dated arbitration agreement. It is agreed that any controversy, claim, or dispute arising out of or relating to Applicant's application or candidacy for employment, employment and/or cessation of employment, and which is otherwise actionable at law, will be resolved exclusively by final and binding arbitration before a neutral arbitrator under the laws of the State of California. The issue of enforceability of this Arbitration Agreement is to be made by the Court, not the arbitrator. This Agreement is negotiable, and Applicant is free to seek the advice of an attorney before signing. This is a mutual agreement and is binding for claims of either party. By way of example only, such claims include claims under federal, state, and local statutory or common law, including, but not limited to, wage and overtime claims under the California Labor Code or Federal Fair Labor Standards Act; claims under the California Fair Employment and Housing Act (Gov. Code §§ 12940, et seq.); the Age Discrimination in Employment Act; Title VII of the Civil Rights Act of 1964, as amended; the Americans with Disabilities Act; the law of contract; and the law of tort. This Agreement shall not restrict any discovery rights or any remedy, including punitive damages or injunctive relief, as provided under California or federal law. Further, judgment upon the award rendered by the arbitrator or arbitrators must be in writing and may be entered in any court having jurisdiction thereof. The arbitrator shall not have the power to commit errors of law or legal reasoning, and the award may be vacated or corrected on appeal to a court of competent jurisdiction for any such error. Any such arbitration shall be conducted within the County of Los Angeles, California, or such other place as may be mutually agreed upon by the parties. **Unless controlling authority requires otherwise, there shall be no right or authority for any dispute to be heard or arbitrated on a class action basis, as a private attorney general, or on a basis involving disputes brought in a purported representative capacity on behalf of the general public, any other current, prospective or former employees, or any other persons similarly situated to either party. Applicant agrees that this Waiver of Class or Representative Action applies to all claims of Applicant, including claims arising prior to the date of this Agreement.** The arbitrator may not consolidate more than one person's claims, and may not otherwise preside over any form of a representative or class proceeding."

Plaintiff does not dispute that the agreement bears her signature, which is dated June 6, 2023. (Cortez Decl., ¶ 5, Exh. A ("Agreement"); see also Hossain Decl.)

Plaintiff was employed by Sweet Scoop, Inc. until sometime in October 2024. She filed this lawsuit approximately one year later.

B. Procedural Background

In this putative wage and hour class action, filed October 6, 2025, Plaintiff alleges causes of action for various Labor Code violations to include: (1) failure to pay all wages, including minimum and overtime wages; (2) failure to provide compliant meal periods; (3) failure to provide compliant rest periods; (4) failure to produce wage statements/payroll records; (5) failure to produce personnel records; (6) failure to produce signed employment records under Labor Code § 432; (7) failure to provide accurate itemized wage statements; (8) failure to reimburse necessary business expenses; (9) failure to timely pay final wages and resulting waiting-time penalties; (10) unfair business practices under Business and Professions Code § 17200.

On April 9, 2026, the Court ordered the present case and another case pending in Los Angeles Superior Court (*Alyssa Pelayo, et al. v. Candlestick Food, Inc*., Case No. 23STCV31796) related over Plaintiff's objection but did not issue any orders concerning the related cases at that time. (Case Management Order, Minute Order April 9, 2026 ¶ 12, p. 4.) The court in the related matter ordered the plaintiff to arbitration by order dated September 4, 2024. (Supp. RJN, ¶ 1, Exh. E.)

The operative First Amended Complaint ("FAC") was filed on December 2, 2025 to add an 11th cause of action for civil penalties under the Private Attorneys General Act (PAGA).

On June 18, 2026, Defendants filed this Motion seeking to enforce the arbitration agreement signed by Plaintiff on June 6, 2023. Plaintiff opposes the motion on grounds that she lacked capacity to contract due to her status as a minor when she signed the agreement, among other grounds such as the agreement is procedurally and substantively unconscionable.

II. Preliminary Matters

A. Non-Compliance with the Rules of Court

The Rules of Court govern the length and format of law and motion papers, to include that no opening or responding memorandum may exceed 15 pages absent leave of court (See Cal. R. Ct., rule 3.1113(d).); the font must be at least 12 points (Cal. R. Ct., rule 2.104); conforming exhibits that are appropriately indexed, tabbed or bookmarked, and paginated (Cal. R. Ct., rules 2.256(b) and 3.1110(f).) Counsel's compliance with these rules greatly aids in the review of papers filed with the Court, and also avoids delay in the Court's issuance of a decision on the merits. Noncompliance with these rules may cause delay in approval, or the Court to disregard noncompliant materials. (See Code Civ. Proc. §§ 187 & 128; see also *Bozzi v. Nordstrom* (2010) 186 Cal.App.4th 755, 765 [trial has broad discretion to refuse to consider papers that do not comply with rule 3.1300(d)].) Neither party's papers are properly indexed, tabbed or bookmarked as required by the local rules. The Court will exercise its discretion to consider the papers on their merits notwithstanding these deficiencies, but admonishes counsel to file compliance papers going forward.

B. Request for Judicial Notice

Defendants' request for judicial notice of Exhibit B, consisting of Sweet Scoop, Inc.'s fictitious business name filings and City of Ventura business tax certificate, is GRANTED as to the existence, filing, issuance, and contents of those public records.

The supplemental request for judicial notice of Exhibit E, the Statement of Decision and minute order in *Pelayo v. Candlestick Food, Inc.*, LASC No. 23STCV31796, is GRANTED for the limited purpose as to the existence and contents of the court records, but not as a substitute for proof of any facts asserted therein, or for any precedential value in this proceeding. Moreover, although the *Pelayo* case has been related to this case, the Court finds that the rulings of that case are not inconsistent with the rulings herein.

C. Evidentiary Objections

Plaintiff's objections are ruled upon as follows:

Nos. 1-4: OVERRULED.

No. 5: SUSTAINED IN PART as to Hossain's statement that, to his knowledge, Plaintiff had no questions concerning the arbitration agreement; otherwise OVERRULED.

No. 6: OVERRULED.

No. 7: SUSTAINED IN PART as to the legal conclusions that the FAA applies and that Plaintiff's duties legally involved interstate commerce; otherwise OVERRULED as to the underlying facts concerning interstate purchases and movement of goods.

No. 8: SUSTAINED IN PART as to the assertion that payment of arbitration costs is required "under the terms" of the agreement; otherwise OVERRULED as to Defendants' present agreement to pay those costs.

Nos. 9-12: OVERRULED.

No. 13: SUSTAINED in part and otherwise OVERRULED, consistent with the Court's ruling on the supplemental request for judicial notice above.

III. Discussion

A. Legal Standard: Motion to Compel Arbitration

A written agreement to submit to arbitration, a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract. (Code Civ. Proc., § 1281.)

California has a strong public policy in favor of arbitration. (*Moncharsh v. Heily & Blase* (1992) 3 Cal.4th 1, 9.) Likewise, Section 2 of the Federal Arbitration Act (FAA) provides in relevant part: "[a] written provision in…a contract evidencing a transaction involving commerce to settle by arbitration a controversy thereafter arising out of such contract or transaction…shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract." (9 U.S.C.A. § 2.) "In determining the rights of parties to enforce an arbitration agreement within the FAA's scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration." (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.)

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and where a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate if it determines an agreement to arbitrate the controversy exists. (Code Civ. Proc., § 1281.2; *Gorlach v. Sports Club Co.* (2012) 209 Cal.App.4th 1497, 1505 [noting that "when presented with a petition to compel arbitration, the trial court's first task is to determine whether the parties have in fact agreed to arbitrate the dispute"].)

In deciding a petition to compel arbitration, trial courts must first decide whether an enforceable arbitration agreement exists between the parties and then determine the second gateway issue of whether the claims are covered within the scope of the agreement. (*Omar v. Ralphs Grocer Co.* (2004) 118 Cal.App.4th 955, 961.) "Although the party seeking arbitration bears the ultimate burden of proof as to the existence of an arbitration agreement, the burden of producing evidence on the issue may shift pursuant to a three-step process recognized by California courts." (*Ramirez v. Golden Queen Mining Co., LLC* (2024) 102 Cal.App.5th 821, 830.) "The first step requires the party seeking arbitration to carry the initial burden of presenting prima facie evidence of a written agreement to arbitrate the controversy. [citations] If that initial burden is met, the second step requires the party opposing arbitration to carry the burden of producing evidence to challenge the authenticity of the agreement. [citation] If the opposing party meets the burden of producing sufficient evidence, the third step requires the party seeking arbitration to prove by a preponderance of the evidence that the parties formed a valid contract to arbitrate their dispute." (*Id*. [citations omitted].)

Once petitioners allege that an arbitration agreement exists and covers the dispute, the burden shifts to respondents to prove the falsity of the purported agreement, and no evidence or authentication is required to find the arbitration agreement exists. (*Condee v. Longwood Mgt. Corp.* (2001) 88 Cal.App.4th 215, 219.) Further, "the party opposing arbitration bears the burden of proving any defense, such as unconscionability." (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC, supra,* 55 Cal.4th 223, 236.)

B. Defendants Do Not Meet Their Ultimate Burden to Show the Existence of a Valid Arbitration Agreement, or Alternatively, Plaintiff Establishes Disaffirmance as a Defense to the Agreement

Here, Defendants met their initial burden to show the existence of a valid arbitration agreement by attaching same to the Motion sufficient to shift the burden of production to Plaintiff to challenge the existence of the agreement. (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 543-544; see also Cal. Rules of Court, rule 3.1330.) In response, Plaintiff does not dispute that she signed the Agreement, but she establishes that she was 17-years old when she signed it and did not attain the age of majority on November 25, 2023. Once Plaintiff became an adult, she continued to work for Sweet Scoop, Inc. through sometime in October 2024. She now disaffirms the agreement with her declaration filed in opposition to this motion, and by filing her claims in state court on October 6, 2025.

Under Family Code §§ 6700 and 6710, a minor may enter into a contract, but the contract remains subject to disaffirmance before majority or within a reasonable time thereafter. The case of *Coughenour v. Del Taco, LLC* (2020) 57 Cal.App.5th 740 is instructive. *Coughenour* recognized that filing suit may itself constitute an unequivocal act of disaffirmance, that continued employment after attaining majority does not necessarily constitute ratification absent knowledge of the agreement and the right to disaffirm, and that whether disaffirmance occurred within a reasonable time depends on the circumstances.

Plaintiff filed this action approximately 22 months after attaining the age of majority and approximately 11 or 12 months after her employment ended. Although this interval is longer than that involved in *Coughenour*, the Court finds it reasonable under the circumstances. Plaintiff was 17-years old when she signed the agreement, was obtaining her first job, states she did not understand arbitration or the import of it, was not given a copy of the agreement, and did not know she could decline it. (Gomez Decl., ¶¶ 2, 5-12.) There is no evidence that, after attaining majority, Plaintiff expressly reaffirmed the agreement or knowingly continued to accept its benefits with knowledge of her right to disaffirm. (*Coughenour v. Del Taco, LLC*, 57 Cal.App.5th at p. 748-749 *citing Hastings v. Dollarhide* (1864) 24 Cal. 195, 213-214, 217, *Fergus v. Songer* (2007) 150 Cal.App.4th 552, 571, and *Berg v. Traylor* (2007) 148 Cal.App.4th 809, 818 [requiring express ratification for a minor who signed a contract and later attains majority to ratify the contract].)

Plaintiff's commencement of this judicial action seeking class and individual relief is inconsistent with the arbitration agreement and constitutes disaffirmance. Her later express disaffirmance in her declaration confirms that position. Continued employment after attaining majority, without evidence of a knowing ratification, does not compel a different result.

Defendants' reliance on Family Code § 6711 is unpersuasive. The statutes permitting employment of minors and generally authorizing enforcement of arbitration agreements do not constitute the "express authority or direction of a statute" to enter this particular arbitration obligation within the meaning of Family Code § 6711.

The Court does not find that Plaintiff's autism-spectrum disclosure, standing alone, rendered her legally incapable of contracting. That circumstance is relevant, however, to the surrounding circumstances of execution and disaffirmance.

Because Plaintiff validly disaffirmed the arbitration agreement under Family Code § 6710, there is no enforceable agreement requiring arbitration. The Court therefore need not reach Plaintiff's other arguments in opposition to the Motion. The requests to strike the class allegations and stay the non-individual PAGA claims are derivative of the request to compel arbitration and are likewise DENIED.

Defendants to give notice.